Revision Date:
June 1, 2026

Background:

Refugee Medical Assistance and Entrant Medical Assistance (RMA/EMA) is a special federal program that provides time limited eligibility to refugees, asylees, victims of human trafficking, domestic violence and other serious crimes, and other special immigrant/entrants who are not otherwise eligible to federally funded Medi-Cal. The program is authorized by the Office of Refugee Resettlement (ORR) but is administered by California counties.

Purpose:

This section has been reformatted and revised to incorporate the Iraqi and Afghan Special Immigrants non-citizen category and to provide guidance on the new time limits for RMA/EMA that went into effect May 5, 2025.

Policy:

Newly admitted refugees, asylees, victims of human trafficking, and other special immigrants must be evaluated for RMA/EMA if they are determined to have no other linkage to Medi-Cal programs, including:

- Modified Adjusted Gross Income (MAGI)
- Non-MAGI with a Share of Cost (SOC)
- California Work Opportunity and Responsibility to Kids (CalWORKs) linked Medi-Cal
- Supplemental Security Income/State Supplementary Payment (SSI/SSP)
- United States (U.S.) citizen children of refugees/entrants if it decreases or eliminates their SOC

Note: Households can be mixed with some individuals in RMA/EMA and others in regular Medi-Cal programs.

Program Income Limits

If otherwise eligible, refugees/entrants with income:

- below 200% of the Federal Poverty Limit (FPL) are eligible to zero SOC Medi-Cal
- over 200% of the FPL are eligible with a SOC

Non-Citizen Status

Applicants must meet the federal definition of “refugee” or “entrant” and provide the name of their resettlement agency and proof of status from one of the following categories:

- Conditional Entrant
- Refugee
- Asylee
- Amerasian
- Iraqi and Afghan Special Immigrants (SI)
- Ukrainian SI
- Victim of human trafficking, domestic violence or other serious crimes
- Permanent Resident Status (new permanent residents who were formerly in one of the categories listed above)
- Cuban/Haitian Entrants

Refer to Medi-Cal Desk Aid 78 Common Immigration Documents for a list of acceptable documentation.

Time Limits

The RMA/EMA time limit is established by the date of entry/admission into the U.S. The current time limits are listed in the table below.

If the U.S. entry/admission date is…	then the time limit is…
prior to May 5, 2025,	12 months.
on or after May 5, 2025,	4 months.

Students in Higher Education

Full-time students in an institution of higher education are ineligible for RMA/EMA unless it is part of an employability plan developed by a county welfare department, county contractor or is part of a plan for an unaccompanied minor.

Income and Resources

The income and resources reported at the time of signing the application are considered in the evaluation (unless there is a decrease). The following income is exempt when determining RMA/EMA eligibility:

- Refugee Cash Assistance (RCA)
- In-kind services provided by a sponsor or resettlement agency
- Resources remaining in the refugee's/entrant's county of origin
- Sponsor's income or resources
- Income earned after the date of application

RMA and Advanced Premium Tax Credits (APTC)

Refugees/entrants with income above the MAGI 138% FPL and below 200% FPL are potentially eligible to zero SOC Medi-Cal and APTC simultaneously and must be offered the opportunity to either enroll in APTC or continue with zero SOC Medi-Cal for their remaining RMA/EMA time limit.

Ongoing Medi-Cal Evaluation

Customers must be re-evaluated for eligibility to other Medi-Cal programs prior to the end of their RMA/EMA time limit.

Refugees/entrants who are diagnosed as infected with Tuberculosis (TB) must be provided with the option to be evaluated for the TB program if they have no other linkage at the end of their RMA/EMA time limit. Refer to Medi-Cal Program Guide (MPG) 05.17 for more TB program information.

Disability Claim

Refugees/entrants who claim disability at application or change in circumstances must be referred to Special Programs-Disability Determination Services Division (SP-DDSD) for a disability determination. If a disability is established during the RMA/EMA eligibility period, the individual must be placed in the appropriate disability based program, if otherwise eligible. RMA/EMA customers who claim disability at the end of their eligibility period are not eligible for Medi-Cal benefits pending a disability determination.

Trafficking and Crime Victims

Customers and their family members who are victims of trafficking or severe forms of crime are to be treated as refugees when evaluating RMA/EMA benefits. Refer to MPG 05.08.03 for more information.

Sponsored Aliens
Those identified as refugees/entrants are exempt from sponsored alien regulations when determining RMA/EMA.

Aid Codes and Notice of Actions (NOA)
The RMA/EMA aid code is 02. The appropriate NOAs for RMA are:

- Approval of Refugee Medical Assistance (DHCS 7111)
- Discontinuance of Refugee Medical Assistance (DHCS 7110)

References:
MEPM PROC 24-A, PROC 24-B
MEPM LTR 285
ACWDL 94-15, 01-49, 05-03, 08-31, 08-53, 09-43, 09-46, 12-19, 14-16, 25-10
MEDIL I 23-46

Sunset Date:
This policy will be reviewed for continuance by May 31, 2029.

Approval for Release:


Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Repatriate Program	Number	Page
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Revision Date:
June 1, 2026

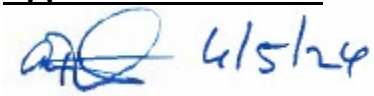
Background:
The Repatriate program is a cash assistance program available to United States (U.S.) citizens who have established residence in a foreign country and wish to return to reside in the U.S.

Purpose:
The purpose of this section is to provide staff with guidance on Medi-Cal eligibility for U.S. citizens while receiving assistance through the Repatriate program. It was reformatted; no other policy changes were made.

Policy:
U.S. citizens eligible for cash payments and other assistance under the Repatriate program are not eligible for Medi-Cal. Eligibility may be established once they are discontinued from the program.

References:
MEM 50255
Eligibility Policy and Procedures Guide - United States Repatriation Program

Sunset Date:
This policy will be reviewed for continuance by May 31, 2029.

Approval for Release:


Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Revision Date:
June 1, 2026

Background:
Some non-citizen victims of human trafficking, domestic violence or other serious crimes who meet Medi-Cal or Refugee Medical Assistance (RMA) eligibility requirements but have Unsatisfactory Immigration Status (UIS) are not eligible for federally funded benefits and services. These customers may be eligible for state-funded full scope Medi-Cal through the Trafficking and Crime Victims Assistance Program (TCVAP).

Purpose:
This section provides guidance on the TCVAP program. This revision includes the eligibility period reduction from 12 to 4 months for individuals that apply on or after May 5, 2025.

Policy:
Eligibility Requirements
Non-citizen victims of human trafficking, domestic violence and other serious crimes who are ineligible to full scope federal refugee programs due to UIS, must be evaluated for TCVAP under either of the categories below:

- Victims who would otherwise be eligible for full scope benefits.
- Victims who meet the RMA income limits and all other eligibility factors. Refer to Medi-Cal Program Guide (MPG) 05.08.01 for RMA policy.

Eligibility Categories
Non-citizen eligibility categories are limited to two types:

1. Victim of Trafficking

Non-citizens who are victims of severe forms of trafficking and have either:

- Filed or are preparing to file for a T Visa.
- Are taking steps to become certified by the United States (U.S.) Department of Health and Human Services (HHS) Office of Refugee Resettlement (ORR).

Note: Child victims of severe forms of trafficking do not require ORR certification to be eligible for benefits.

Severe forms of trafficking are defined as:

- Sex trafficking in which a commercial sex act is induced by force, fraud, coercion, or in which the person induced to perform such act has not attained 18 years of age; or
- The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, with force, fraud, or coercion, for the purpose of subjection to involuntary servitude or slavery to repay a debt.

2. Victim of Domestic Violence and Other Serious Crimes

Non-citizen victims who have filed for or have been granted a U Visa.

Domestic violence or other serious crimes are defined as:

- Substantial physical, or mental abuse as a result of having been a victim of criminal or similar activity, involving one or more of the following federal, state or local criminal law violations: rape,

torture, trafficking, incest, domestic violence, sexual assault, prostitution, sexual exploitation, stalking, being held hostage, kidnapping/abduction, false imprisonment, blackmail, extortion, manslaughter, felonious assault, witness tampering; obstruction of justice, perjury, fraud in foreign labor contracting, conspiracy or solicitation to commit any of the above-mentioned crimes; **and**

- Victim possesses information concerning criminal activity and are being helpful with federal, state, or local authorities investigating or prosecuting criminal activities described above that violated the laws of the U.S. or occurred in the U.S.

Note: The term "victim" includes both the direct victim and certain family members called "derivative relatives". Derivative relatives are those who have applied/are preparing to apply for a T Visa or have filed a U Visa application. These individuals are eligible, because ORR only issues a certification letter to the primary victim.

TCVAP Documentation

The following documents may be used to verify status for TCVAP:

Status	Acceptable Documentation
Trafficking	• Police, government agency, or court records • News articles • Documentation from a social services, trafficking or domestic violence program • Documentation from a legal, clinical, medical, or other professional from whom the applicant has sought assistance in dealing with the crime • A statement from any other individual with knowledge of the circumstances that provided the basis for the claim • Physical evidence such as a wheelchair, bruises or cast • A copy of a completed visa application or written notice from the federal agency that they received it • Sworn statement from the victim if they cannot provide additional evidence (e.g. Trafficking Declaration [14-142])
T Visa	• A confirmation receipt /letter from United States Citizenship and Immigration Services (USCIS) verifying an application has been filed • A copy of the T Visa application • Statements from officials who have assisted or are assisting the victim with an application
U Visa (Application must have been filed)	• A confirmation receipt/letter from USCIS • I-797 Approval Notice or I-797C Extension of U status • U Visa stamp in passport • I-797 fee receipt for an employment authorization request based on a U Visa application • A completed copy of I-918 Petition for U Nonimmigrant Status (If this is the only available evidence, the applicant must provide verification from USCIS that it was submitted)

	• An Employment Authorization Document (EAD) issued under category “A19” or “A20” for an approved U Visa petitioner • I-797 fee receipt for an I-485 Application to Register Permanent Residence or Adjust Status along with the first page of the applicant’s I-485 indicating that it is based on U Visa status • An EAD issued under category “C9” along with the first page of the applicant’s I-485, indicating that the application to adjust to lawful permanent residence is based on U Visa status • An I-797C Extension of U nonimmigrant status

Period of Eligibility

The date of entry is not a factor when determining the eligibility period for victims under this program.

For those who qualify under regular Medi-Cal rules:

Applicant Type	Eligibility Period
T Visa	12 months*.
U Visa	Eligibility will continue unless the U Visa is administratively denied. When the U Visa is granted, TCVAP benefits will continue for the life of the visa or until the immigration status changes.

For those who qualify under RMA rules:

Applicant Type	Eligibility Period
T Visa before May 5, 2025	12 months*.
T Visa on or after May 5, 2025	4 months*.
U Visa	Eligibility will continue unless the U Visa is administratively denied. When the U Visa is granted TCVAP benefits will continue for the life of the visa or until the immigration status changes.

*If an application for continued presence or a T Visa is filed within the period, eligibility must be extended until the T Visa is granted, denied, or they are certified by ORR for federal eligibility.

Termination of State Funded TCVAP

Benefits must be re-evaluated when the period of eligibility ends.

Aid Codes and Notices of Action (NOA)

The appropriate aid codes and NOAs for the TCVAP program are:

- 5V - Medi-Cal with no SOC
- 7V - Medi-Cal with a SOC
- 2V - RMA no SOC
- 4V - RMA with a SOC

The appropriate NOAs for the TCVAP program are:

- Denial for TCVAP (DHCS 7112)
- Approval for Benefits under the TCVAP (DHCS 7113)
- Discontinuance for TCVAP (DHCS 7114)

Automation:
CalSAWS Job Aid Citizenship and Sponsorship - Add or Edit

References:
ACWDLs 15-25, 25-10

Sunset Date:
This policy will be reviewed for continuance on or by May 31, 2029.

Approval for Release:
4/5/24
Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services